



SPONSOR: Sen. Walsh & Sen. Wilson & Rep. Cooke
Sens. Lawson, Pettyjohn; Reps. Osienski, Spiegelman

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 108

AN ACT TO AMEND CHAPTER 2, TITLE 11 OF THE DELAWARE CODE RELATING TO CRIMES AND DEADLY WEAPONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 222, Chapter 2, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 222. General definitions.

(6) a. "Deadly weapon" includes any of the following:

1. A firearm.
2. A bomb.
3. A knife of any sort, other than an ordinary pocketknife carried in a closed position.
4. A switchblade knife.
5. A billy.
6. A blackjack.
7. A bludgeon.
8. Metal knuckles.
9. A slingshot.
10. A razor.
11. A bicycle chain.
12. An ice pick.
13. A dangerous instrument, which is used, or attempted to be used, to cause death or serious physical injury.
14. A projectile weapon.

b. For the purpose of this definition, "ordinary pocketknife" means a ~~folding~~ knife having a blade not more than 3.75 inches in length.

Section 2. Amend Subchapter VII, Chapter 5, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

23 § 1446. ~~Unlawfully dealing with a switchblade knife; unclassified misdemeanor.~~
24 ~~A person is guilty of unlawfully dealing with a switchblade knife when the person sells, offers for sale or has in~~
25 ~~possession a knife, the blade of which is released by a spring mechanism or by gravity.~~
26 ~~Unlawfully dealing with a switchblade knife is an unclassified misdemeanor.~~

SYNOPSIS

This Act removes prohibitions in Title 11 of the Delaware Code related to owning or possessing certain types of knives that may be opened by one hand. Such cutting implements are lawfully used as tools by many working in the trades, and are also popular among outdoor, hunting, and camping enthusiasts. Currently, despite common and myriad lawful purposes, such knives are treated as deadly weapons in Delaware, and therefore subject otherwise law-abiding Delawareans engaged in law-abiding activities to criminal prosecution in the justice system. Removing the prohibitions would permit individuals to lawfully use such tools, but would still subject them to prosecution for deadly weapons-related offenses where an individual uses such a knife in the course of an attack or assault aimed at causing death or serious injury.

Author: Senator Walsh